

Kunti Devi v. State of U.P.

Allahabad High Court · Division Bench · 10 April 2024 · 2024:AHC:63583-DB · WRIT - C No. - 11826 of 2024 · **Writ disposed of; objection to be considered under Supply Code.**

HEADNOTE

A writ seeking a direction to decide an objection to a notice of provisional assessment in an alleged theft case was disposed of on the licensee's statement that the Executive Engineer would consider the objection before the final assessment order, with a direction that the procedure under the U.P. Electricity Supply Code, 2005 be strictly followed.

FACTUAL SUMMARY

The petitioner, Kunti Devi, approached the Allahabad High Court seeking a direction to respondent no. 2 to decide her application dated 22 December 2023. By that application she had objected to a notice of provisional assessment issued to her by the Electricity Department in a case of assessment based on alleged theft of electricity. Counsel for the Department stated that the objection would be considered by the concerned Executive Engineer before any final assessment order was passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

objection to provisional assessment in alleged theft

HOLDING

On the licensee's statement that the consumer's objection to the notice of provisional assessment in an alleged theft case would be considered by the Executive Engineer before the final assessment order, the writ was disposed of with a direction that the procedure prescribed under the U.P. Electricity Supply Code, 2005 shall be strictly followed while considering the objection. ¶ 2-3

FLAG order invokes the Supply Code 2005 generally; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking a direction to decide an objection to a notice of provisional assessment in an alleged theft case was disposed of on the licensee's statement that the Executive Engineer would consider the objection before the final assessment order, with a direction that the procedure under the U.P.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT AND OF THE OBJECTION TO THE PROVISIONAL ASSESSMENT

Left to the Executive Engineer to consider the objection before passing the final assessment order, following Supply Code procedure. ¶ 2-3